

IN THE COURT OF APPEAL OF THE DEMOCRATIC SOCIALIST REPUBLIC OF
SRI LANKA

In the matter of an Application under Article
140 of the Constitution for a mandate in the
nature of Writs of Certiorari and Mandamus.

Court of Appeal Case No:
CA/WRIT/416/2024

R.M. Anushka Ranjani,
No. 130/5, Wijaya Mawatha,
Wattegedara Road,
Maharagama.
And
No. 159/2, Sunila Place,
Maharagama.

PETITIONER

Vs.

1. General Manager – Railways,
General Manager – Railways Office,
Railways Headquarters,
Colombo 10.
2. Commercial Manager – Railways,
Railways Headquarters,
Colombo 10.
3. Assistant Commercial Manager (Lands),
Railways Headquarters,
Colombo 10.
4. Secretary,
Ministry of Transport & Highways,
Sethsiripaya,
Battaramulla.

5. Minister of Transport & Highways,
Ministry of Transport & Highways,
Sethsiripaya,
Battaramulla.
6. Minister of Tourism & Lands,
“Mihikatha Madura”,
No. 1200/6, Rajamalwatta Rd,
Battaramulla.
7. Hon. Attorney General,
Attorney General’s Department,
Colombo 12.

RESPONDENTS

Before: Mayadunne Corea, J
Mahen Gopallawa, J

Counsel: Chamara Fernando with Maleesha Perera for the Petitioner.
Panchali Witharana, S.C. for the Respondents.

Argued on: 05.03.2026.

Written Submissions: For the Petitioner on 26.03.2026.
For the Respondents on 05.05.2026.

Decided on: 26.06.2026.

Mayadunne Corea J

The Petitioner in this application sought, *inter alia*, the following reliefs:

- “c) *Issue a mandate in the nature of a Writ of Certiorari quashing the Quit Notice ‘P 1(f)’ issued against the Petitioner*
- d) *Issue a mandate in the nature of a Writ of Mandamus directing any one or more of the Respondents to cause a Lease Agreement to be entered into with the Petitioner with respect to the said land and premises for an appropriate and reasonable lease-rent, until such time the said land is actually and legitimately required for a public purpose by Sri Lanka Railways”*

Factual matrix

The facts of this case, in brief, are as follows. Since 2001, the Petitioner had been operating a pre-school and additional classes on premises situated within the railways reservation. It is alleged that the 3rd Respondent had issued a letter dated 29.06.2014, granting the Petitioner permission to operate the said school within the said premises on a lease exempt basis and thereby, the Petitioner states that she operated the said school with the full knowledge and consent of the Sri Lanka Railways. Thereafter, the Sri Lanka Railways advised the Petitioner to enter into a lease agreement with an appropriate lease rental.

However, by a letter dated 03.03.2020, the Petitioner was informed that the leasing out of railway reservations could not be carried out due to the project for electrification of the Kelani valley railway line. Subsequently, the Petitioner was issued with a quit notice dated 25.03.2022 (P1(f)). Thereafter, the 1st Respondent instituted proceedings in the Magistrate’s Court and the learned Magistrate issued an eviction order against the Petitioner on 13.06.2024. Hence, this Writ application.

The Petitioner's contention

The Petitioner challenged the acts of the Respondents on the following grounds:

- The Respondents have acted in violation of the legitimate expectations of the Petitioner.
- The Respondents have acted contrary to the provisions of the State Lands (Recovery of Possession) Act, No. 7 of 1979.
- The Petitioner is occupying the land on written authority of the Department of Railways, and is not in unauthorised possession or occupation.
- The Respondents have failed to obtain the approval of the Minister prior to the issuance of the quit notice.

The Respondents' contention

The Respondents raised the following objections:

- Futility
- Availability of an alternative remedy
- Misrepresentation of material facts

Analysis

I will consider the Petitioner's submissions along with the objections of the Respondents. In summarising the Petitioner's submissions, even though several grounds were raised the Petitioner's main argument is that the act of sending a quit notice is a violation of the Petitioner's legitimate expectations, and hence, the quit notice is bad in law.

It is common ground that the Petitioner;

- is in occupation of Ceylon Government Railway (CGR) land (herein referred to as 'corpus').
- does not have a valid legal permit to occupy the said land.
- is running a fee levying pre-school in the premises.
- is not paying any lease or rent to the Respondents.

- was served with a quit notice.
- has failed to comply and accordingly, a prosecution in the Magistrate's Court had been instituted which culminated in an order to evict the Petitioner.

Let me now consider the Petitioner's main contention

Legitimate expectation

The Petitioner has been occupying the corpus for a considerable period of time and had been conducting a pre-school charging fees from the students who attended it. It is contended by the Counsel for the Petitioner that the Petitioner had paid business tax to the Urban Council of Maharagama for the pre-school. It is also contended that in 2014, the Petitioner had requested for a letter from the Railway Department to state that she is having a pre-school in a railway reservation land (P1b). In considering the said document, it appears that the Commercial Superintendent of Railways had issued this letter on the request of the Petitioner saying that the said land is given for pre-school without levying any rental.

However, it is pertinent to note that although the Commercial Superintendent had issued this letter, the Railway Department had not entered into any agreement to lease out any railway reservation land to the Petitioner for commercial purposes. The learned State Counsel in response contended that this letter has no legal validity as railway reservation land being state land cannot be given to any person according to the whims and fancies of individuals. Hence, it was his contention that there is a procedure laid down in law governing the leasing of railway lands and anything contrary to the said provisions amounts to an illegal document.

It appears that the Petitioner thereafter, had sought to regularize the occupation by requesting to lease the said land. Sri Lanka Railways had sought a report to be submitted to the 'lease committee' of Sri Lanka Railways. Accordingly, the Railway Department had made a plan which is marked and tendered as P2. However, the Counsel for the Petitioner submitted that in the year 2020, the Petitioner had been informed by the then Deputy General Manager – Commercial that the Petitioner's request cannot be processed as a special project to electrify the Kelani valley railway line is to commence (P1e). Thus, the Petitioner's request has been rejected.

It appears that the Petitioner thereafter, had made requests to several people including to the Additional Secretary seeking to obtain a lease of the railway land. By document marked P3 in the year 2017 the Additional Secretary (Land) of the Ministry of Transport and Civil Aviation had informed the General Manager – Railways that the power to lease out railway land which had been vested with the Secretary to the Ministry had been divested by a cabinet decision to the General Manager – Railways. Hence, it appears that from the year 2017, the decision-making power as to whether a railway land is to be leased or not was vested with the 1st Respondent. Hence, it is clear by the document marked as P1e, that the 1st Respondent had informed the Petitioner that the corpus could not be leased out to her.

However, it appears that the Petitioner despite receiving the letter marked as P1(e) thereafter, had communicated with the Secretary to the Ministry of Transport which resulted in the Ministry of Transport sending a letter to the 1st Respondent requesting him to inform the steps the 1st Respondent had taken pertaining to the Petitioner's request to obtain a lease for the railway land.

Accordingly, in the year 2023, by the document marked as P5, the Deputy Superintendent of Marketing of Sri Lanka Railways had informed the Petitioner to submit several documents including her proposed project plan to consider her proposal. This letter is dated 27.09.2023. The Petitioner has failed to tender any material to demonstrate that she has complied with the request in P5.

However, subsequent to the issuance of the notice to quit in the year 2024, the Petitioner had been copied a letter written by the Deputy Superintendent – Marketing, whereby the Petitioner has been informed that the Railway Department is in the process of considering project proposals and submitting it to the evaluation committee. The Petitioner was also informed that her request to lease out railway land too, could be submitted to the said evaluation committee.

While these communications were in progress, the Railways Department had published a paper notice requesting all unauthorized occupants of railway land to register under the Sri Lanka Railways Department before 15.07.2024. The said notice further submits that the failure to register would result in facing prosecution under State Lands (Recovery of Possession) Act. The Petitioner has failed to demonstrate any material to establish that she has complied with this paper notice by registering at the Railways Department.

It is also pertinent to note that in 2022, the Petitioner had been issued with a quit notice under the State Lands (Recovery of Possession) Act. It is also observed that this notice has been sent subsequent to the document P1(e), whereby the Railway Department had informed the Petitioner that her request to lease the property cannot be granted. Thus once the Petitioner received the reply rejecting her application to obtain a lease, the Petitioner cannot be seen to harbour any legitimate expectation.

Let me now consider the arguments of the Petitioner in favour of her contention of having a legitimate expectation to obtain a lease over railway land. The Petitioner's first contention is that in 2014, the Commercial Superintendent of Railways issued a letter stating that the Petitioner is given the railway land to conduct a pre-school without a rental. However, as observed above, this letter has been issued on the request of the Petitioner. Further, this letter is not a lease agreement. As contended by the learned Counsel for the Respondent, the question is whether the Commercial Superintendent of Railways had the authority to issue this letter. It is pertinent to observe that the letter does not state that the Commercial Superintendent has made a decision for the Petitioner to carry out the pre-school in the railway reservation land nor, does it say that the author had taken a decision to waive off the collection of lease rentals. Although the letter states that on the advice of the General Manager of Railways, the Petitioner had not been charged lease rental, no such advice of the 1st Respondent had been tendered to this Court. On the contrary, it was the contention of the learned State Counsel that no such advice had been given and any advice given should be in writing and in compliance with the procedure adopted in leasing railway lands. In considering the document marked as P3, this Court agrees with the learned State Counsel's contention.

Be that as it may, in any event, this letter of the Commercial Superintendent has been written in the year 2014. However, by P1(e), the Petitioner had been informed that a request to lease out the land cannot be granted. Hence, in view of the said letter, the Petitioner's contention that by P1b, she has a legitimate expectation to enter into a lease agreement, cannot be sustained.

Thereafter, in the year 2022, the Sri Lanka Railway had issued an impugned quit notice on the Petitioner which is marked as P1(f) and subsequently, a case had been instituted in the Magistrate's Court of Nugegoda. Hence, it is clear that the Petitioner's request to have a lease, had been refused. Moreover, as the Petitioner has failed to comply and hand over vacant possession, an action under the State Lands (Recovery of Possession) Act has been

instituted. It appears that the said action had proceeded for nearly two years and the order of eviction had been issued on 13.06.2024.

The Petitioner further submitted that the Railway Department had communicated with the Petitioner on leasing the corpus. To substantiate this argument, the Petitioner relies on documents P3, P1c, P4, P1d, P5 and P6. Let me now examine the said documents.

It appears that P3 is a letter whereby the Additional Secretary informed the 1st Respondent that the power to lease out railway land is with the 1st Respondent. It is copied to the Petitioner, and has the caption to state that it is pertains to obtaining a permit to occupy the railway reservation land for the pre-school. However, this letter does not stipulate the leasing of the said land to the Petitioner. The document marked as P1c is a letter written by the Petitioner's Attorney-at-law to the 1st Respondent. Hence, the said letter cannot generate an expectation in the Petitioner.

The letter marked as P4 dated 27.05.2022 is a letter whereby the Additional Secretary has called for a report from the 1st Respondent pertaining to the steps taken in respect of the application made by the Petitioner. However, it is pertinent to observe that in 2017, the Additional Secretary had informed the 1st Respondent that the decision to lease out land is vested with the 1st Respondent and the 1st Respondent by P1e had informed the Petitioner that her request to lease out land cannot be accommodated. It is also observed that by P4 the Additional Secretary has not made any representation to the Petitioner that the railway land is to be leased out to her.

The document P1d is a letter written by the Secretary to the Ministry of Transport and Highways to the Petitioner. By this time, the 1st Respondent had already instituted action in Magistrate's Court of Nugegoda to evict the Petitioner. It appears that, by P1d, the Petitioner as well as another institution had made a request to lease out the corpus. Hence, the Petitioner had been informed that her request alone cannot be accommodated. However, the said letter further says that in view of the two applications, the corpus is to be taken into the custody of the Railway Department and as per the circular referred thereon, under the condition that a potential lessee has to come to an agreement to pay for arrears of rentals and states that thereafter steps to be taken to enter into a new lease agreement. It appears that this letter is conditional and it clearly states that there are two applicants seeking to occupy the corpus. There is no material submitted by the Petitioner to demonstrate that she had agreed to the conditions stipulated in the P1d. Hence, in my

view, P1d cannot create a legitimate expectation on the Petitioner. It is also pertinent to observe as submitted by the Counsel that this process of giving a lease is going in parallel to the institution of action under State Lands (Recovery of Possession) Act to evict the Petitioner and obtain possession of the land to the railways department.

Subsequently by P5, the Petitioner had once again been asked to submit her project proposal and the other required material stipulated thereon. Whether this material has been submitted or not has not been explained and in any event the Petitioner has not contended that he has complied and submitted these documents to the Sri Lanka Railway.

Thereafter, by P6, the Petitioner has been copied a letter stating that the proposals would be submitted to an evaluation committee. Hence, in my view, P5 and P6 letters do not generate a legitimate expectation in the Petitioner to obtain the corpus. It is also pertinent to note that, as per the material submitted, the Petitioner had been in possession of railway land without a valid permit and without paying any lease rental. However, she had been conducting a fee-levying pre-school. In my view this amounts to being unjustly enriched by utilising the Sri Lanka Railways Department's land.

I have considered the Petitioner's contention of obtaining a lease and the expectation to obtain a lease. However, whether that expectation is legitimate is questionable. Even if I am to apply the test that the Petitioner relies on ***Ariyaratne and others v. Illangakoon and Others* SC FR 444/2012, SC Minutes 30.07.2019**, to ascertain whether there is a legitimate expectation, there is no assurance in the letter relied on by the Petitioner stating that the said land would be leased out to her before the commencement of proceedings to evict her. This Court will take a step further and observe that there is no material placed by the Petitioner to demonstrate that there is an assurance given by a competent person to alienate railway land that the corpus would be given to the Petitioner. The Petitioner also argued that the subsequent conduct of the 1st Respondent creates a legitimate expectation. However, in the same contention, the Petitioner argues that the impugned quit notice is bad in law as it violated the Petitioner's legitimate expectation. As I have stated above, the issuance of quit notice and the institution of action to evict the Petitioner has to be considered separately from the subsequent communication the Petitioner relies on and alleges that there is a legitimate expectation.

This Court is mindful that the Petitioner is impugning the quit notice issued in 2022 marked as P1(f). I observe that by the time P1(f) was issued, the Petitioner was aware that she was

occupying railway land without authorisation and that the authorized person to lease out the land was the 1st Respondent and the 1st Respondent had informed her by P1e that her request cannot be considered. Hence, whatever other communications the Petitioner is relying on are subsequent to the said action. Accordingly, those communications cannot be considered to create a legitimate expectation to the Petitioner pertaining to a decision taken prior to those communications namely, the decision to send the quit notice and the institution of the Magistrate's Court action. Hence, in my view, the Petitioner's contention of having a legitimate expectation based on the documents specifically referred in paragraph 13 of her written submissions cannot be sustained.

Applicability of section 14 of the State Land (Recover of Possession) Act

The learned Counsel for the Petitioner contended that the impugned quit notice is bad in law due to non-compliance with section 14. His argument was based on the decided case of ***Alwis v Wedamulla* [1997 3 SLR 43]**. This Court observes the facts and circumstances of this case differ from the facts of the case before this Court. The said case is based on compliance of section 14(2) of the Act. The Counsel for the Petitioner concedes that what is applicable for the instant case is section 14(1). It is also pertinent to note that there is no allegation made in the Magistrate's Court of non-compliance with section 14(1) of the Act. Further, I observe that the application filed in the Magistrate's Court is in compliance with the schedules of the State Lands (Recovery of Possession) Act. Hence, in my view the said objection cannot be sustained.

Prayers of the Petitioner

Even though the Petitioner contended that she is providing community service by having a pre-school, this Court observes that the said community service is also a source of income for the Petitioner. Hence, it is observed that the Petitioner is in illegal and unauthorized occupation the Sri Lanka Railway Department's land to generate income for herself. Hence, in my view, the Petitioner has failed to demonstrate any illegality in the quit notice marked as P1(f). Therefore, prayer (c) of the Petition has to fail.

The Petitioner, by prayer (d), is seeking for a Writ of Mandamus against any one or more of the Respondents to cause the lease agreement to be entered into with the Petitioner. This Court observes that the said prayer is vague in nature and as per the provisions of the Act

and even under document marked as P3, the decision to enter into a lease agreement is with the 1st Respondent. Hence, the Petitioner's prayer (d) has to fail.

Further, the Petitioner is inviting this Court to compel the 1st Respondent to enter into a lease agreement whereby, the Petitioner is inviting this Court to wear the shoes of the 1st Respondent which this Court is not inclined to accede to. It is also pertinent to note that if this Court is to state broadly, a Writ of Mandamus would lie to compel a public authority to perform a public duty which has not been performed. However, what the Petitioner is seeking is an order to enter into a private lease agreement which is to enter into a contractual relationship with the Petitioner. Further, the Petitioner has failed to demonstrate that he has a legal right for the said public authority to perform the said public duty which in this instance, will not arise as what the Petitioner is seeking is not a public duty but to enter into a private contract to lease out land. In view of the above finding, the Court need not consider the objections raised by the Respondents.

Nevertheless, it is observed that the Petitioner is seeking to quash the quit notice marked as P1f. However, subsequent to the quit notice, enforcement action has been instituted, and the Petitioner had been offered an opportunity to show cause. After considering the show cause, the learned Magistrate issued the eviction orders against the Petitioner. In the instant case, the learned Magistrate is not a party before this Court. This Court observes that once the eviction proceedings have commenced and a case number is allocated, the said case is in possession of the Magistrate's Court. It is observed that the learned Magistrate had issued an eviction order marked as P1(i) on 13.06.2024, while the Petitioner has instituted this action on 02.07.2024 and sought an interim order to stay the enforcement of the quit notice.

Want of necessary parties

As observed in the above paragraph, an order of this Court will have a direct bearing on the Magistrate's Court proceedings of enforcement. However, the Petitioner has failed to name the learned Magistrate or the Registrar of the Magistrate's Court a party to this case. Hence in my view, the Petitioner has failed to name the necessary parties to this application which also becomes fatal to the Petitioner's application.

In ***Rawaya Publishers v. Wijedasa Rajapakse and others*** (2001) 3 SLR 213, the Court held as follows:

“In the context of Writ applications as a necessary party is one without whom no order can be effectively made. A proper party is one in whose absence an effective order can be made but whose presence is necessary to a complete and final decision on the question involved in the proceedings....If they are not made parties then the petition can be dismissed in limine. It has also been held that persons vitally affected by the Writ petition are all necessary parties. If their number is very large, some of them could be made Respondents in a representative capacity.

In ***Ukwatte v. DFCC*** (2004) 1 SLR 164, where the Petitioner sought to quash a resolution by the Board of Directors of a particular bank, the Court observed as follows;

“It has been constantly held that the party or parties against whom the relief is sought must be identified clearly and no room left for uncertainty. In the case at hand, the resolutions sought to be quashed are that of the Board of Directors of the ... bank and one of the Directors have been made parties to the application.”

Conclusion

I have considered the material submitted to this Court, the oral submissions and written submissions of the learned Counsels for the Petitioner and the Respondents. Accordingly, for the above-stated reasons, I refuse to grant a Writ of Certiorari and a Writ of Mandamus as prayed for and accordingly, proceed to dismiss this Writ application. The parties are to bear their own costs.

Judge of the Court of Appeal

Mahen Gopallawa, J

I agree

Judge of the Court of Appeal